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THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : IA(C)/182/2024

Tai Nikio

Son of Late Tai Kami, permanent resident of Village Peel, PO and PS Sangram,
Kurung Kumey District, Arunachal Pradesh 791118 and presently residing at
Karsingsa, Doimukh, Papumpare District, Arunachal Pradesh 791123

VERSUS

Tadar Mangku

Son of Late Tadar Tagam, permanent resident of Village Langht Loth, PO and PS
Nyapin, Kurung Kumey District, Arunachal Pradesh 791118 and presently residing at
Pachin Colony, PO and PS Naharlagun, Papumpare District, Arunachal Pradesh
791110

Advocate for the Petitioner : Tabing Lamgu,

Advocate for the Respondent : K Posi,

Linked Case : Election Pet./7/2024

Tadar Mangku

Age: 54

Occupation :

Address: Son of Late Tadar Tagam

permanent resident of Village Langht Loth
PO and PS Nyapin
Kurung Kumey District
Arunachal Pradesh 791118 and presently residing at Pachin Colony
PO and PS Naharlagun
Papumpare District
Arunachal Pradesh 791110

VERSUS

Tai Nikio
Age: 0
Occupation :
Address: Son of Late Tai Kami
permanent resident of Village Peel
PO and PS Sangram
Kurung Kumey District
Arunachal Pradesh 791118 and presently residing at Karsingsa
Doimukh
Papumpare District
Arunachal Pradesh 791123

Advocate for : D J Kapil
Advocate for : Pritam Taffo appearing for Tai Nikio: Advocate appearing for
respectively.

BEFORE
HONOURABLE MR. JUSTICE KARDAK ETE

Date of hearing : 19.02.2025.
Date of Judgment : 21.03.2025.

Judgment and Order (CAV)

Heard Mr. P. K. Tiwari, learned Senior counsel assisted by Mr. T. Lamgu, learned counsel for the applicant/respondent. And also heard Mr. Rituraj Biswas and Mr. D.J. Kapil, learned counsel for the opposite party/election petitioner.

2. This is an application under Order VI Rule 16 of the Code of Civil Procedure, 1908 seeking striking out pleadings in the connected Election

Petition No. 7(AP)/2024, on the ground that the same are unnecessary, scandalous, frivolous and vexatious.

3. The opposite party/election petitioner has filed the Election Petition No. 7(AP)/2024, for declaration of the election of the applicant/respondent from 19 Nyapin (ST) Assembly Constituency to be void under Section 98(b) of the Representation of Peoples Act, 1951 (hereinafter referred to as the RP Act, 1951 in short) on the ground of commission of corrupt practice by a returned candidate or his election agent or by any other person with the consent of the returned candidate or his election agent as provided under Section 100 (1)(b) of the RP Act, 1951 and also for a declaration of the election of the applicant/respondent under Section 98(c) of the RP Act, 1951 and under Section 101 (b) of the said Act for having received majority of valid votes, i.e. but for the votes obtained by the returned candidate by corrupt practice, the petitioner would have obtained a majority of the valid votes.

4. It is the contention of the applicant/respondent that it is evident from the nature of reliefs sought for in the election petition that the election petitioner does not seek to declare the election of the returned candidate void on the ground provided under Section 100(1)(d)(iii) of the RP Act, 1951, i.e. result of the election of the returned candidate was materially affected by the improper reception of void votes. On the contrary, pleaded case projected by the petitioner is covered by Section 101(b) of the RP Act, 1951, i.e. but for the votes obtained by the returned candidate/respondent by corrupt practice of booth capturing, the petitioner would have obtained the majority of the valid votes.

5. The applicant/respondent contends that in the pleadings dealing with the defective electoral rolls, the petitioner has projected the case of inclusion of

dead voters, non-existent or bogus voters in the electoral rolls of 16-Pagba, 29-Kambang, 30-Peel and 24-Rowa Polling Stations in the 19 Nyapin (ST) Assembly Constituency, thereby clearly and unambiguously projecting the case of defective electoral rolls in the aforementioned Polling Stations. There is no prayer in the election petition under Section 100(1)(d)(iii) of the RP Act, 1951 that the election of the returned candidate be declared void on the ground of being materially affected by improper reception of void votes. It is contended that the Hon'ble Supreme Court has held that the defective Electoral Roll cannot be a ground for setting aside an election of a returned candidate under Section 100(1)(d)(iii) and (iv) of the RP Act, 1951. Therefore, unless it is shown with material facts and particulars that the votes of dead persons were cast in favor of returned candidate or there was impersonation or double voting favoring the returned candidate thereby resulting in improper reception of void votes materially affecting the outcome of election, merely because the names of dead or non-existent voters entered into electoral roll cannot be a ground for setting aside the election of returned candidate. Moreover, in such a case, apart from incorporating relevant material facts with particulars clearly showing as to how the returned candidate was benefited by double voting or impersonation, it is mandatory to make a specific prayer for declaring the election of returned candidate void on the ground of Section 100(1)(d)(iii) of the RP Act, 1951. In the present case election petitioner not only miserably failed to incorporate the material particulars showing improper reception of void votes in favor of the returned candidate but also failed to make a prayer to set aside the election under Section 100(1)(d)(iii) of the RP Act, 1951 on the said ground.

6. In sharp contrast, the applicant/respondent contends that in the pleadings with regard to corrupt practice under section 123(8) of the RP Act, 1951, the

petitioner has projected a case of returned candidate committing an offence of booth capturing in 16-Pagba, 29-Kambang, 30-Peel and 24-Rowa Polling Stations, which is a corrupt practice under Section 135A(a) to (c) read with Section 123(8) of the RP Act, 1951. While projecting a case of booth capturing by the returned candidate and his agents, the election petitioner did not state the material facts and particulars showing as to how after booth capturing, the votes of dead voters were cast in favor of returned candidate or that impersonation and double voting benefited the returned candidate resulting in materially affecting the outcome of election.

7. The applicant/respondent further contends that there is no specific pleading in the election petition connecting the pleadings relating to defective electoral rolls with that of pleadings relating to corrupt practice inasmuch as there is no specific statement of the election petitioner that the returned candidate, by resorting to the corrupt practice of booth capturing, ensured that the votes of bogus voters, dead or non-existent voters are polled by his supporters with the consent and knowledge of the returned candidate and/or his election agent. On the contrary pleadings pertains to corrupt practice alleges booth capturing and intimidation of voters by the returned candidate and on the said basis accused the petitioner of corrupt practice under Section 101 (b) of the RP Act, 1951, i.e. but for the votes obtained by the returned candidate by corrupt practice the petitioner would have obtained a majority of the valid votes. Therefore, the pleadings relates to corrupt practice exist independently. Likewise, the pleadings relates to inclusion of dead, no-existent and bogus voters exist independently and clearly make out a case of defective electoral roll in the Polling Stations of 16-Pagba, 29-Kambang, 30-Peel and 24-Rowa in the 19 Nyapin (ST) Assembly Constituency.

8. Mr. P.K. Tiwari, learned senior counsel for the applicant/ respondent, submits that the principle of law is well settled that an election petition must contain a specific prayer for relief. This principle is supported by the requirement that all material facts and prayers must be clearly articulated in the petition to establish a cause of action. Therefore, the pleadings cannot be construed to be on the ground provided under Section 100(1)(d)(iii) of the RP Act, 1951, i.e. result of the election insofar as it concerns a returned candidate has been materially affected by the improper reception of void votes because there is no prayer to this effect. Hence, the pleadings can only be treated to be relating to defective electoral rolls and cannot be connected with the non-existent prayer of declaring the election of the returned candidate to be void under Section 100(1)(d)(iii) of the RP Act, 1951. Even the futile attempt to connect defective electoral roll with the prayer under section 100(1)(d) (iii) of the Act will not help the petitioner because defective electoral roll is not a ground to set aside an election under Section 100(1)(d) (iii) and (iv) of the RP Act, 1951. Moreover, pleadings of defective electoral roll cannot be linked with the pleadings related to the allegations of returned candidate having committed corrupt practice by resorting to booth capturing in 16-Pagba, 29-Kambang, 30-Peel and 24-Rowa Polling Stations in the 19 Nyapin (ST) Assembly Constituency and on the said basis relief is claimed under Section 101(b) of the RP Act, 1951.

9. Mr. Tiwari, learned senior counsel submits that there is no specific pleading that the votes of dead, non-existent and of bogus voters were polled by the supporters of the returned candidate, whereas the common allegation made in the pleadings regarding corrupt practice is that the supporters of the returned candidate indulged in booth capturing and restrained the voters in favour of the election petitioner from casting their votes by resorting to threat, intimidation

and coercion. There is no specific statement that the supporters of the returned candidate cast the votes of dead, non-existent and bogus voters and the allegations only confine to booth capturing by the supporters of the returned candidate and their conduct of intimidation, coercion and threat resulting in restraining the voters in favour of the election petitioner from casting their votes. Therefore, it is evident that the pleadings relating to defective electoral rolls in 16-Pagba, 29-Kambang, 30-Peel and 24-Rowa Polling Stations cannot be construed as the pleadings relating to improper reception of void votes under Section 100(1)(d)(iii) & (iv) of the RP Act, 1951 and even otherwise cannot invalidate the election under Section 100(1)(d) (iii) and (iv) of the RP Act, 1951.

10. Mr. Tiwari, learned senior counsel submits that the principle of law is well settled that the finality of electoral roll cannot be questioned in an election petition. Part-III of the Representation of the People Act, 1950 contains provisions with regard to preparation of electoral rolls for Assembly Constituencies. In this connection, reference has been made to Sections 15, 16, 17, 18, 19, 21, 22, 23 and 24. Section 22 of the Act provides for correction of entries in electoral rolls on the ground provided under Section 22(a) to (c). Section 23 provides for inclusion of names in electoral rolls. Section 23(3) of the Act mandates that no amendment, transposition or deletion of any entry shall be made under Section 22 and no direction for the inclusion of a name in the electoral roll of a Constituency shall be given after the last date for making nomination for an election in that Constituency, before the completion of that election.

11. Mr. Tiwari, learned senior counsel submits that after the last date of making nomination when the electoral rolls becomes final under Section 23(3) of the 1950 Act, there cannot be any change in the electoral roll. In the event of

any change in the electoral roll after its finality but before the election, the High Court has the jurisdiction to determine whether any vote was improperly accepted or rejected. Be that as it may, it is not the pleaded case of the election petitioner that after the finality of the electoral rolls under Section 23(3) of the 1950 Act, there was any change in the electoral roll before the polling. There is no pleading to this effect in the election petition.

12. Mr. Tiwari, learned senior counsel submits that in order to overcome the difficulty of invalidating the election on the ground of defective electoral rolls, the petitioner in a volte face tried to project a case of improper reception of votes under Section 100(1)(d)(iii) of the RP Act, 1951 and contended that since the ground covered by Section 100(1)(d)(iii) of the said Act is not a corrupt practice, the petitioner is only required to plead relevant material facts constituting the said ground.

13. Mr. Tiwari, learned senior counsel submits that the petitioner also highlighted the difference between the material facts and the material particulars. It was urged by the petitioner that under Section 100(1)(d)(iii) petitioner is only required to show the improper and illegal reception of void votes and the relevant material facts to this effect are present in the pleadings and relied the judgment of the Supreme Court in **Virender Nath Gautam** (infra). He submits that the reply of the petitioner is misplaced and misconceived. Petitioner could not explain the absence of any prayer in the election petition under Section 100(1)(d)(iii) of the 1951 Act. There is also no material fact in any of the pleadings where petitioner has stated the material fact showing the reception of void votes by the returned candidate. There is no material fact in any of the pleadings in this aspect of the case in the election petition. He argued that in **Virender Nath Gautam** case, the election of returned candidate

was challenged on the ground of improper and illegal reception and acceptance of void votes i.e. on the ground provided under Section 100(1)(d) (iii) of the 1951 Act and not on the ground of corrupt practice which evident from Paragraph 53 of the judgment. It was held by the Hon'ble Supreme Court that the election petitioner was only required to state material facts in the election petition under Section 83 (1) (a) of the 1951 Act and was not required to "set forth full particulars", which is the requirement of Section 83 (1) (b) of "any corrupt practice". It was because of the nature of the ground on which the election petitioner had challenged the election of the returned candidate in that case that the election petitioner therein had also made a prayer for recounting of votes due to which one of the preliminary issue framed in the election petition was that "Whether the petitioner is stopped from reclaiming recounting of votes?" Mr. Tiwari, learned senior counsel submits that in sharp contrast, in the present case, the election petitioner has not prayed for declaring the election of the returned candidate void on the ground of improper reception of vote under Section 100(1)(d) (iii) of the RP Act, 1951. There is also no prayer for recounting of votes by excluding the void votes. Further, there is no material fact in the pleadings stating that the returned candidate was the recipient of the void votes i.e. the votes of dead and non-existent voters. Hence reliance on the **Virender Nath Gautam** case is misplaced and misdirected.

14. Mr. P.K. Tiwari, learned senior counsel, while drawing the attention of this court pertaining to inclusion of dead, non-existent and bogus voters at Paragraphs -11(a), 11(f), 11(g), 11(i), 11(j), 11(k), 12xxvi (a) , 12xxvi(b), 12xxvi (c) 12xxvi (d) , 12xxvi(e), 12xxvi (f) , 12xxvi (g) 12xxvii, 12xxviii, 12xxix, 12xxx, 12xxx, 12xxx and containing pleadings on booth capturing, coercion & intimidation of electors and preventing them from going to the polling station at

paragraphs 11l, 11n, 11o, 11p, 11q, 11r, 11s, 11u, 12xxxii, 12xxxiii, 12xxxiv, 12xxxv, 12xxxvii, 12xxxviii, 12xxxix, 12xxxix(a), 12xxxix(b), 12xxxix(c), 12xxxix(d), 12xxxix(e), 12xl, 12xli, 12xlii and 12xlili by elaborately explaining the reasons as to why each of the above paragraphs are liable to be struck off, submits that the pleadings made in above Paragraphs are unnecessary, frivolous, vexatious and as such are liable to be struck off along with Annexures.

15. In support of his submissions, Mr. P.K. Tiwari, learned senior counsel has placed reliance on the following judgements:

1. ***Syamdeo Prasad Singh Vs. Nawal Kishore Yadav***, reported in **(2000) 8 SCC 46**.
2. ***Laxmi Kant Bajpai Vs. Hazi Yaqoob & Ors.*** reported in **(2010) 4 SCC 81**.
3. ***Inderjit Barua & Ors. Vs. Election Commission of India***, reported in **(1985) 1 SCC 21**.
4. ***Baidyanath Panjiar Vs. Sita Ram Mahto***, reported in **(1969) 2 SCC 447**.
5. ***Kabul Singh Vs. Kundan Singh***, reported in **(1969) 2 SCC 452**.
6. ***Narendra Madialapa Kheni Vs. Manikrao Patil***, reported in **(1977) 4 SCC 16**.

16. On the other hand, Mr. Rituraj Biswas, learned counsel for the opposite party/election petitioner submits that the application under Order VI Rule 16 of the Civil Procedure Code, 1908 is maintainable only when either of the three conditions mentioned therein are satisfied. For application of the above provision, the pleadings have to be unnecessary, scandalous, frivolous or vexatious, or may tend to prejudice, embarrass or delay the fair trial of the suit, or otherwise an abuse of the process of the court.

17. He submits that apart from vague statements made in aforesaid respect, the applicant/respondent has completely failed to make out a case that any one

of the aforesaid conditions are present to attract the provision of Order VI Rule 16 of the Code of Civil Procedure, 1908. Further, the aforesaid provision can only be used sparingly and cannot be resorted to if the pleadings disclose a triable issue. He submits that such application for striking out pleadings in itself can also be an abuse of the process of law. The allowing of striking out pleadings relating to the election petition may impact the election petition by which the purity of the election process has been questioned.

18. Mr. Biswas, learned counsel submits that the Hon'ble Supreme Court has continuously highlighted the difference between "material fact" and "full particulars" in an election petition. It has been held by the Hon'ble courts that particulars are details that amplify the material facts. These details are matters of evidence which the party may lead at the time of trial.

19. He submits that the Applicant/respondent has argued that an electoral roll cannot be challenged in the election petition as the electoral roll has attained finality under the Representation of Peoples Act, 1950. However, this is not the case sought to be projected by the election petitioner. The case of the petitioner is that because of the dead, bogus and duplicate voters in the electoral roll, people who were not eligible for voting have cast votes. These votes are void votes and could not have been counted. Section 61 of the RP Act, 1951 provides for special procedure for preventing impersonation of electors. Section 62(3) and (4) provides that no person shall vote at a general election in more than one constituency of the same class or more than once in the same constituency and if he does so, then the vote shall be void. He submits that that identification of dead, bogus and double voters is a process adopted after the finalization of electoral roll to avoid impersonation of electors at the election and to ensure the purity of the election process. The election petitioner has been

continuously pointing out the issue to the authorities. However, no steps were taken which resulted in the applicant/respondent taking advantage of the situation. Therefore, above ground covers the ground under Section 100 (1) (d) (iii) and Section 100 (1)(d)(iv) and Section 100 (1)(b) of the RP Act, 1951.

20. Mr. Biswas, learned counsel submits that the election petitioner has provided sufficient details/particulars with respect to booth capturing. The material facts forming the cause of action have been stated. The pleadings lay down the ingredient of the definition of "booth capturing" defined in Explanation to Section 135A of the RP Act, 1951. In this respect, he submits that the entire pleadings have to be read as a whole, and a sentence cannot be extracted to state that no cause of action has been made out or that the particulars are lacking. He submits that it is pleaded in Para 11 (xxxiv) of the election petition that in 4 (four) polling stations, agents of the respondent cast the votes for the entire voters. He submits that these pleadings are sufficient as same provide details of the polling stations. The details of the agents are known to the applicant/ respondent. No prejudice will be caused to the applicant/respondent if the issue is examined during the trial.

21. Mr. Biswas, learned counsel submits that the applicant/ respondent has extracted certain paragraphs from the election petition and prayed that such paragraphs be struck out. He submits that such an approach cannot be adopted as a comprehensive view of the entire petition has to be taken. The averments in the petition cannot be read in isolation and must be considered in totality. He submits that it has been held in various judgments that whether a particular fact is material or not in an election petition depends on the facts and circumstances of each case.

22. Mr. Biswas, learned counsel submits that the court cannot go into the

merit of the case while examining the application praying for striking out of the pleadings. The averments in the plaint must be considered to be true. The fact that the election petitioner may not be able to prove his case in the trial is not a factor to be considered while considering the merit of the Order VI Rule 16 application as the same is a rule of procedure and does not deal with whether the case is ultimately strong or weak.

23. He submits that without prejudice to the foregoing submissions, one set of facts may result in setting aside the election on more than one ground. For instance, the kidnapping of the petitioner's polling agent results in corrupt practice and also denial of assistance of polling agent to the petitioner which results in non-compliance of the rules and provisions of the Act thus resulting in a ground for election petition under Section 100 (1)(d) (iv) which is not a corrupt practice and for which "full particulars" are not required under Section 83. Thus, the pleadings cannot be struck out for lack of full particulars. Therefore, he prays for dismissal of the present application.

24. Mr. Rituraj Biswas, learned counsel, in support of his submissions, has placed reliance of the following judgments:

1. **Sardar Harcharan Singh Brar vs. Sukh Darshan Singh**, reported in **(2004) 11 SCC 196**.
2. **D. Ramachandran vs. R.V. Janakiraman**, reported in **(1999) 3 SCC 267**.
3. **Ashraf Kokkur v. K.V. Abdul Khader**, reported in **(2015) 1 SCC 129**.
4. **Virender Nath Gautam vs. Satpal Singh**, reported in **(2007) 3 SCC 617**.
5. **Harkirat Singh vs. Amrinder Singh**, reported in **(2005) 13 SCC 511**.

6. **V.S. Achuthanandan vs. P.J. Frances**, reported in **(1999) 3 SCC 737**.

7. **Madiraju Venkata vs. Peddireddigari Ramachandra Reddy**, reported in **(2018) 14 SCC 1**.

8. **Ponnala Lakshmaiah vs. Kokkumi Pratap Reddy**, reported in **(2012) 7 SCC 788**.

25. Due consideration has been extended to the submissions advanced by the learned counsel for the parties and perused the pleadings in the election petition.

26. In order to appreciate, the pleadings made in the election petition are referred and examined to ascertain as to whether the petitioner has set forth materials facts and particulars.

27. On perusal of the Election Petition, following pleadings are discernable-pleadings pertaining to inclusion of dead voters, non-existent or bogus voters in the electoral rolls of 16-Pagba, 29-Kambang, 30-Peel and 24-Rowa Polling Stations in the 19 Nyapin (ST) Assembly Constituency, booth capturing in 16-Pagba, 29-Kambang, 30- Peel and 24-Rowa Polling stations with the consent of the respondent or his election agent under Section 135A(a) to (c) of the RP Act, 1951 resulting in corrupt practice under section 123(8) of the Act and non-disclosure of assets in Form 26 affidavit thereby violating the mandate of Section 33A of the RP Act, 1951 resulting in undue influence of voters thereby affecting the free exercise of their electoral right, thus leading to corrupt practice under Section 123(2) of the RP Act, 1951.

28. Paragraph 11(a) reflects the letter dated 27.10.2023 written by one Tadar Nilo complaining about bogus or fake voters in the voter lists of 16-Pagba, 29-Kambang, 30-Peel Polling Stations in the 19 Nyapin (ST) Assembly Constituency.

The complaint was made before the issue of notification of 11th Legislative Assembly election. There is no pleading that before the finalization of the electoral roll under Section 23(3) of the Representation of Peoples Act, 1950 there was any change in the electoral roll before the date of polling. Paragraph 11f is with regard to the letter of the Chief Election Officer dated 10.04.2024 to the District Election Officer-cum-Returning Officer to prepare a list of absentee, shifted and dead voters. The last date for withdrawal of candidature was 30.03.2024 and 19.04.2024 being the date of polling, the communication of the Chief Election Officer dated 10.04.2024 has been made after the finality of the electoral rolls under Section 23(3) of the RP Act, 1950 during the intervening period between last date of withdrawal of nomination and date of polling. Pleadings appear to indicate the defective nature of electoral roll. Pleadings made in Paragraph 11g of the election petition states about petitioner filing a complaint dated 12.04.2024 with the District Election Officer about presence of bogus voters in the electoral roll of 16-Pagba, 29-Kambang and 30-Peel. The complaint has been made after finalization of electoral roll and before the date of polling on 19.04.2024. The pleadings made in Paragraph 11h states about petitioner's complaint dated 12.04.2024 to the District Election Officer-cum-Returning Officer about entry of 102 bogus voters in the electoral roll of 24 Rowa Polling Station. Complaint also indicated the apprehension of the petitioner of impersonation and booth capturing. The complaint also speaks of entry of 24 dead voters in the electoral roll of the aforementioned polling station. The complaint of the petitioner dated 12.04.2024 was also made after finalization of the electoral roll. It contains the fact relating to reception of 102 bogus votes and votes of 24 dead voters by the returned candidate which may attract the ground covered by Section 100(1) (d)(iii) of the RP Act, 1951. The

pleadings made in Paragraph 11i states about petitioner's letter dated 13.04.2024 to the District Election Officer about the entry of 355 bogus voters and 18 dead voters in the electoral roll of 30 Peel Polling Station. It also contains reception of 355 bogus votes and votes of 18 dead voters by the returned candidate stating that same may attract the ground covered by Section 100(1)(d) (iii) of the RP Act, 1951. Pleadings made in Paragraph 11j states about a letter dated 15.04.2024 issued from the office of Chief Election Officer forwarding the letter of the petitioner dated 13.04.2024. The letter of Chief Election Officer was written after finalization of the Electoral roll under Section 23(3) of the RP Act, 1950. The pleadings made in Paragraph 11k states about the response letter dated 15.04.2024 of the BLO of 30 Peel Polling Station stating that the claims and objections on the electoral roll cannot be decided after finalization of the electoral rolls.

29. The grounds urged in Paragraph 12(xxvi)(a) refers to letter dated 27.10.2023 of Tadar Nilo complaining about entry of bogus and fake voters in the electoral rolls of 16-Pagba, 29-Kambang, 30-Peel Polling Stations in the 19 Nyapin (ST) Assembly Constituency. Reference is also made of summary revision of electoral roll dated 25 and 26.09.2023 during which 3000 voters were enrolled on the basis of forged birth certificates, Adhar cards and other false documents in contravention of the provisions of Registration of Electoral Rolls, 1960. It was also stated that the numbers of registered voters are disproportionate to the number of households in 16-Pagba, 29-Kambang and 30-Peel Polling stations.

30. The grounds urged in Paragraphs 12(xxvi)(b) to 12(xxvi)(g) are relates to electoral rolls and the lack of adequate care and diligence in preparation of electoral roll for the 30 Peel and 24 Rowa Polling Stations. The electoral rolls

according to the petitioner included the names of dead and relocated voters and despite of specific complaints by the petitioner the concerned officials failed to take appropriate steps.

31. Submissions made in Paragraph 12(xxvii) contains the number of the bogus voters as per the enquiry conducted by the petitioner. It indicates that the names of these bogus/dead voters had entered the electoral rolls of 16-Pagba, 29-Kambang, 30-Peel and 24-Rowa Polling Stations. The number of bogus voters provided by the petitioner would constitute material facts showing reception of these bogus votes by the returned candidate.

32. Submissions made in Paragraph 12(xxviii) are related to names of voters whose names according to the petitioner were incorrectly included in the electoral rolls of 16-Pagba, 30-Peel and 24-Rowa Polling Stations. Petitioner has also annexed these electoral rolls. The submissions appears to be related to correctness of electoral roll of 16-Pagba, 30-Peel and 24-Rowa Polling Stations.

33. Paragraph 12(xxix) relates to voting against the invalid names included in the electoral roll of these voters who according to the petitioner had cast their vote against these invalid votes. Paragraph 12(xxx) relate to bogus voters having materially affected the outcome of the election. Paragraph 12(xxxi) deals with violations of Section 17 and 18 of the RP Act 1950 in registration of voters. Section 100(1)(d)(iv) of the RP Act, 1951 clearly provides that non-compliance with the provisions of the Constitution or this Act or any rules or order made under this Act is a ground for declaring election to be void.

34. The paragraphs 11l, 11n, 11o, 11p, 11q, 11r, 11s, 11u, 12xxxii, 12xxxiii, 12xxxiv, 12xxxv, 12xxxvii, 12xxxviii, 12xxxix, 12xxxix(a), 12xxxix(b), 12xxxix(c), 12xxxix(d), 12xxxix(e), 12xl, 12xli, 12xlil and 12xlili pertains to Corrupt practice.

35. The contents of Paragraph 11(l) disclose that the petitioner's polling agent was kidnapped. The voters of 16 Pagba, 29 Kambang and 20 Sangram Polling Stations were stated to have been kidnapped and locked away at some unknown locations although names of these kidnapped voters have not been disclosed. It is alleged that around 12 AM till early morning of the polling day, there was threatening and kidnapping of petitioner's workers. No names of those who have threatened nor the names of those voters, who have been threatened, have been mentioned. However, there is an allegation that one of the polling agents of the petitioner, Sri Niagh Kamin, was kidnapped by some unknown group of masked persons in the early morning around 3:00 AM on 19.04.2024. There is an allegation that the workers of the respondent had threatened one Tai Radey. There is an allegation that at 29 Kambang Polling Station, the workers of the respondent did not allow the voters to cast their vote till the respondent arrived from his own Polling Station-30 Peel.

36. The contents of Paragraph 11(n) disclose the statement that petitioner's polling agents informed him that there were several instances of rigging at several Polling Stations across the No.19 Nyapin (ST) Assembly Constituency by the respondent 1. The petitioner's polling agent Tai Radey has made complaint that he was threatened by BJP workers and removed the polling agent of the petitioner, Sri Tai Radey, from the Polling Station and prevented him from doing his duty as polling agent.

37. The contents of Paragraph 11(o) reflects the allegation that voters were not allowed to cast their vote by the workers of the respondent and have prevented the voters from casting their votes and were indulging in booth capturing. A request was made by the petitioner to the election officials to conduct a comprehensive investigation vide dated 19.04.2024. Paragraph 11(p)

contains the allegation of corrupt practice that there was poll rigging at the 16 Pagba 30 Peel, 29 Kambang and 24 Rowa polling stations which was communicated through whatsapp and indicate booth capturing. The petitioner informed the Returning Officer about various incidents of the stoppage of voters by the BJP members. The contents of Paragraph 11(q) contain demand made by the petitioner to the Returning Officer to an incident of booth capturing and poll rigging. The contents of Paragraph 11(q) relate to Petitioner's letter dated 15.05.2024, asking for relevant material pertains to poll rigging. In Paragraph 11(r) petitioner has stated about his filing a complaint by email to the Election Commission with regard to poll rigging in the No. 19 Nyapin (ST) Assembly Constituency. Paragraph 11(s) contains the allegation of manhandling of the polling agent of the petitioner at gunpoint and an allegation of instances of booth capturing by BJP workers at Peel, Kambang, Pagba, Rowa Polling Stations. The petitioner made a complaint to the concerned authority on 16.05.2024, alleging that bogus votes were cast. The contents of Paragraph 11(u) pertains to the complaint of the petitioner dated 20.05.2024 to the Chief Electoral Officer, Itanagar against the DEO and RO pertaining to the inaction in the matter of bogus voters.

38. The submissions in Paragraph 12(xxxii) of the election petition alleges corrupt practice of booth capturing and poll rigging. The submissions in Paragraph 12(xxxiii) relates to kidnapping and locking of polling agents of petitioner including one Niagh Kamen and the voters of 16 Pagba, 29 Kambang and 20 Sangram Polling Stations based on the information received by the petitioner from his two Party workers, namely, Tai Rohit and Tai Taluk on 19.04.2024. The submissions made in Paragraph 12(xxxiv) on the allegation of the petitioner that in 4(four) Polling Stations, i.e. Peel, Pagba, Kambang and

Rowa, only agents of the applicant/respondent had cast the votes of the entire voters of the said Polling Stations and has asked for CCTV footages. The submissions at Paragraph 12(xxxvii) that the respondent secured 1596 out of total 1719 votes cast in four Polling Stations, i.e. Pagba, Rowa, Kambang and Peel, alleging booth capturing in these Polling Stations. The submissions made in Paragraph 12(xxxviii) are on the allegation of booth capturing. The submissions made in Paragraph 12(xxxix) (a), (b), (c), (d) & (e) are related to various complaints and e-mails sent by the petitioner on which, as per the allegation of the petitioner, no action was taken.

39. On consideration of the above pleadings and on comprehensive view of the entire petition as well as having considered in totality, in my view pleadings discloses material facts and particulars although complete particulars may be lacking. Thus, I am of the view that the grounds of corrupt practice and the facts necessary to formulate a complete cause of action are pleaded which would suffice to formulate cause of action.

40. Section 83(1)(a) of the RP Act, 1951 mandates that an election petition shall contain a concise statement of the material facts on which petitioner relies. When the election petition alleges corrupt practice, Section 83(1)(b) mandates that an election petition shall set forth full particulars of any corrupt practice that the petition alleges, including as full a statement as possible of the names of the parties alleged to have committed such corrupt practice & the date and place of the commission of each such practice. Proviso to Section 83(1) states that where the petitioner alleges any corrupt practice, the petition shall be accompanied by an affidavit in the prescribed form in support of the allegation of such corrupt practice & the particulars thereof. Section 86(5) confers discretionary powers on the High Court to allow the particulars of any corrupt

practice alleged in the petition to be amended or amplified in such a manner as may in its opinion be necessary for ensuring fair and effective trial of the petition, but shall not allow any amendment of the petition which will have the effect of introducing particulars of a corrupt practice not previously alleged in the election petition.

41. In the case of **Virender Nath Gautam** (Supra), the Hon'ble Supreme Court, while making a distinction between material facts & particulars observed as under:-

"34. Material facts" are primary or basic facts which must be pleaded by the plaintiff or by the defendant in support of the case set up by him either to prove his cause of action or defence. "Particulars" on the other hand, are details in support of material facts pleaded by the party. They amplify, refine and embellish material facts by giving distinctive touch to the basic contours of a picture already drawn so as to make it full, more clear and more informative. "Particulars" thus ensure conduct of fair trial and would not take opposite party by surprise.

35. All material facts must be pleaded by the party in support of the case set up by him. Since the object and purpose is to enable the opposite party to know the case he has to meet with, in the absence of pleading, a party cannot be allowed to lead evidence. Failure to state even a single material fact, hence, will entail dismissal of the suit or petition. Particulars, on the other hand, are the details of the case which is in the nature of evidence a party would be leading at the time of trial."

53. On an additional ground also, the order of the High Court is liable to be set aside. All allegations in para 8 of the election petition, as also sub paras (1) to (iv) of para 8 relate to improper and illegal reception and acceptance of votes and the election petitioner has challenged the election of the returned candidate on that ground and not on the ground of "corrupt practice." He was, therefore, required to state material facts in the election petition under Section 83 (1) (a) of the Act. It was, however, not necessary to "set forth full particulars: which is the requirement of

Section 83 (1) (b) of "any corrupt practice".

42. In **Samant N. Balkrishna Vs. George Fernandez**, reported in **(1969) 3 SCC 238**, while dealing with the requirement in an election petition as to the statement of material facts and the consequences of lack of such disclosure, the Hon'ble Supreme Court has held that omission of even a single material fact leads to an incomplete cause of action and statement of claim becomes bad.

43. Reference is made to the case of **Sardar Harcharan Singh Brar**, (Supra) wherein the Hon'ble supreme court, following the ratio laid down in **Raj Narain v. Indira Nehru Gandhi**, reported in **(1972) 3 SCC 850**, has held that election petition cannot be dismissed at the threshold if the grounds of corrupt practice and the facts necessary to formulate a complete cause of action have been stated. It was held that if the High Court believed particulars is deficient the Petitioner could have been directed to supply the particulars. It was held that deficiency in particulars could not have been a ground to dismiss the petition at the threshold.

44. In **D. Ramachandran v. R.V. Janakiraman**, (supra), an election petition was filed, inter-alia, on the ground that there were several voters in the electoral roll which could not have polled at the election as they were out of town/country or were dead. The Petitioner had also alleged corrupt practices. It has been held by Hon'ble supreme Court that under Order 6, Rule 16, the court is enabled to strike out a pleading only if the 3 grounds therein are met. It has been noted in that case that there is substantial difference between "material facts" and "full particulars" and the consequences flowing from them.

45. In **Ashraf Kokkur v. K.V. Abdul Khader**, (Supra), the Hon'ble Supreme court held that there is a difference between whether an issue has been raised in the election petition and whether the issue can be proved at the trial. It has quoted

V.S. Achuthanandan (supra), wherein it was observed that the failure of the pleadings to disclose a reasonable cause of action is distinct from the absence of full particulars.

46. In **Virender Nath Gautam** (Supra), as referred to herein above, the election petition was filed inter-alia on the ground that there were several irregularities and illegalities and also discrepancies in the voters' list. It was noted that in the election petition it was alleged that votes of dead voters were cast. It was noted that double votes were cast and it was alleged that void votes were polled. It was alleged that there were irregularities by Returning Officer. The Hon'ble Supreme Court held that what particulars could be said to be "material facts" would depend upon the facts of each case and no rule of universal application can be laid down. The court noted that "Particulars" are details in support of material facts pleaded by the party and they amplify, refine and embellish material facts by giving distinctive touch to the basic contours of a picture already drawn. It was held that "Particulars" thus ensure conduct of fair trial and would not take opposite party by surprise. The Supreme Court held that the High Court had erred on the issue of dead voters in considering matters of evidence as material facts. It has held that the considerations which weighed with the High Court were in the nature of "evidence" which is matter to be considered and proved at the time of trial. When the law prevents a person from exercising right to vote more than once and it is alleged that there was double voting in respect of certain persons, the allegation can be said to be complete. Whether or not the election petition is able to prove the said allegation is a matter of evidence which can be considered only at the stage of trial. It has held that the particulars and evidence are not required to set out in the pleadings.

47. In **Harkirat Singh** (Supra), Hon'ble Supreme court noted the observations of a previous judgment which held that if the court is of the view that particulars are not stated then an opportunity has to be given to provide the same. In **R.M. Seshadri v. G. Vasantha Pai**, reported in **(1969) 1 SCC 27**, wherein it was observed that matters of evidence are not required to be pleaded. It was held that the High Court was unjustified in entering into correctness or otherwise of the facts stated and allegations made in the election petition and rejecting the petition holding that it did not state material facts and thus did not disclose a cause of action.

48. In **Madiraju Venkata** (Supra), it was held that while considering striking out the pleadings, the High Court cannot examine the merits. It was held that the election petition will have to be read as a whole and cannot be dissected sentence-wise or paragraph-wise to rule that the same does not disclose a cause of action. It was further observed that, so long as the claim discloses some cause of action or raises some questions fit to be decided by a Judge, the mere fact that the case is weak and not likely to succeed is not ground for striking it out.

49. In **V.S. Achuthanandan** (Supra), it has been held that cause of action cannot be equated with proof. So long as the claim discloses some cause of action or raises some questions fit to be decided by a Judge, the mere fact that the case is weak and not likely to succeed is no ground for striking it down. It was further observed that failure to disclose full particulars is different from disclosure of a reasonable cause of action. It was further observed that taking a hyper technical view frustrates the purity of the election process.

50. In **Ponnala Lakshmaiah** (Supra), it has been held that the court has to take a full and comprehensive view of the pleadings to decide whether a plaint

discloses a cause of action and that the pleadings cannot be dissected or segregated. It has been observed that the court may allow the particulars to be amplified or amended. The court is not required to strictly construe the pleadings with respect to corrupt practice. It has been held that success at the trial is a different matter all together. The court noted that such applications are filed as dilatory tactics.

51. In the case of **Shyamdeo Pd. Singh** (Supra), the Hon'ble Supreme Court has held as under:-

“26. To sum up we are of the opinion that inclusion of person or persons in the electoral roll by an authority empowered in law to prepare the electoral rolls, though they were not qualified to be so enrolled, cannot be a ground for setting aside an election of a returned candidate under sub-clause (iii) or (iv) of clause (d) of Sub-Section (i) of Section 100 of the Representation of the People Act, 1951. A person enrolled in the electoral list by an authority empowered by law to prepare an electoral roll or to include a name therein is entitled to cast a vote unless disqualified under sub-sections (2) to (5) of Section 62 of the Representation of People Act 1951.”

52. The Constitution Bench of the Hon'ble Supreme Court in **Inderjit Barua** (Supra) has held which is reproduced herein under:-

"3. We are of the view that once the final electoral rolls are published and elections are held on the basis of such electoral rolls, it is not open to anyone to challenge the election from any constituency or constituencies on the ground that the electoral rolls were defective. That is not a ground available for challenging an election under Section 100 of the Representation of People Act, 1951. The finality of the electoral rolls cannot be assailed in a proceeding challenging the validity of an election held on the basis of such electoral rolls vide *Kabul Singh v. Kundan Singh* [(1969) 2 SCC 452.]”

53. Perused the case laws relied on by learned Senior Counsel for the

applicant/respondent. There cannot be any quarrel to the propositions of law as enunciated by the Hon'ble Supreme Court. However, in the given facts of the present case, I am of the view that the case laws relied on by learned Senior Counsel would not come to the aid of the applicant.

54. Reverting back to present case, the pleadings at paragraph- 11f, no doubt relates to the letter of the Chief Election Officer dated 10.04.2024 to the District Election Officer-cum-Returning Officer to prepare a list of absentee, shifted and dead voters. The last date for withdrawal of candidature was 30.03.2024 and 19.04.2024 being the date of polling, the communication of the Chief Election Officer dated 10.04.2024 have been made after the finality of the electoral rolls under Section 23(3) of the RP Act, 1950 during the intervening period between last date of withdrawal of nomination and date of polling which appears to indicate the defective nature of electoral roll which may not be a ground for declaring an election void. However, same, in my view cannot be read in isolation as it has bearing with the grounds in pleadings and connected with the other pleadings.

55. The grounds urged in Paragraphs 12(xxvi)(b) to 12(xxvi)(g) are related to electoral rolls and highlight the lack of adequate care and diligence in preparation of electoral roll for the 30 Peel and 24 Rowa Polling Stations. The electoral rolls according to the petitioner included the names of dead and relocated voters and despite of specific complaints by the petitioner the concerned officials failed to take appropriate steps. Since all the aforementioned grounds are related to electoral rolls, same would have material bearing to the allegation of reception of void votes by returned candidate which appears to constitute a cause of action for challenging the election of the returned candidate. It is noticed that no allegation that there is any change in the

electoral rolls after they attained finality under Section 23(3) of the RP Act, 1950 during the intervening period between the finality of the electoral rolls and the date of polling. However, in my considered view same cannot be said to be unnecessary as the pleadings cannot be read in isolation but has to be considered in totality. Thus, above pleadings discloses cause of action and raises some questions fit to be decided in trial.

56. Having considered and taking a full and comprehensive view of the pleadings, I am of the view that pleadings discloses a cause of action as some part of pleadings cannot be dissected or segregated. The pleadings disclose the material facts and details in support of material facts which, prima facie, amplify material facts with particulars, which would ensure conduct of fair trial and would not take the applicant/respondent by surprise as the allegations are matter to be considered and proved at the time of trial.

57. As held by the Hon'ble Supreme court, when the law prevents a person from exercising right to vote more than once and when it is alleged that there was bogus voting and voting by dead voters in respect of certain persons, the allegation can be said to be complete. Whether or not the election petition is able to prove the said allegation is a matter of evidence which can be considered only at the stage of trial as the particulars and evidence are not required to set out in the pleadings.

58. In view of the foregoing discussion and reasons thereof, I am of the considered view that the applicant/respondent has failed to make out any ground for striking out of the pleadings in the connected election petition as the pleadings discloses material facts and particulars and those allegations are matter to be considered and proved at the time of trial.

59. In the result, interlocutory application is rejected and disposed of.

JUDGE

Comparing Assistant